

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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FRANKIE LEE SMITH,

Plaintiff,

-against-

**STIPULATION AND
ORDER OF DISMISSAL**

12-CV-2626 (BMC)

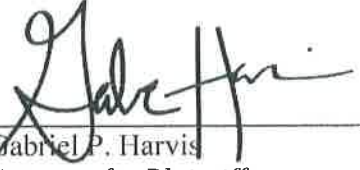
Police Officer MELISSA NAPOLI, Shield No. 629;
Police Officer JAMES COONEY, Shield No. 12527;
Police Officer MARC LEBRON, Shield No. 18385;
Sergeant ANTHONY MCDONALD, Shield No.
1901; and Police Officers JOHN and JANE DOES 4
through 10, individually and in their official
capacities, (the names John and Jane Doe being
fictitious, as the true names are presently unknown),

Defendants.
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WHEREAS, the parties have reached a settlement agreement and now desire to
resolve the remaining issues raised in this litigation, without further proceedings and without
admitting any fault or liability;

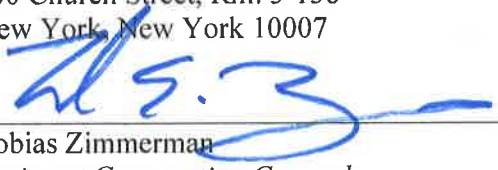
NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by
and between the undersigned, that the above-referenced action is hereby dismissed with
prejudice.

Harvis, Saleem, Wright & Fett, LLP
Attorneys for Plaintiff
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By: 

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MICHAEL A. CARDOZO
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City of New York
*Attorney for Defendants Napoli, Cooney
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New York, New York 10007

By: 

Tobias Zimmerman
Assistant Corporation Counsel

SO ORDERED:

Dated: New York, New York
_____, 2012

HON. BRIAN M. COGAN
UNITED STATES DISTRICT JUDGE